

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 22-005
Amendments to Title 8 of the Chickasaw Nation Code
(Chickasaw Election Rules and Regulations)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature reviews the Election Rules and Regulations on an annual basis and desires to amend Title 8 of the Chickasaw Nation Code.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 8, Section 8-410 of the Chickasaw Nation Code, all other sections of Title 8 to remain the same (additions and changes of case are shown in red, deletions are stricken through):

“SECTION 8-410 **INVALID BALLOTS.**

A.—— Ballots shall be counted invalid for any of the following reasons:

1. the ballot is received after the deadline of 10:30 a.m. on the Tuesday following the third Monday in August of the election year;

2. ~~The inner envelope is not returned in the official outer envelope;~~

————— 3. ——— the signature is not readily identifiable as that of the registered Voter's signature which appears on the Voter's registration form. The Election Secretary/Tribal Registrar and one Commissioner or (2) Commissioners shall have the authority to determine the validity of the Voter signatures in accordance with Title 2, Chapter 10, Section 2-1031.6 of the Chickasaw Nation Code;

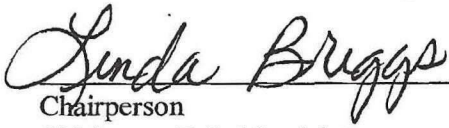
34. the ballot is not marked;

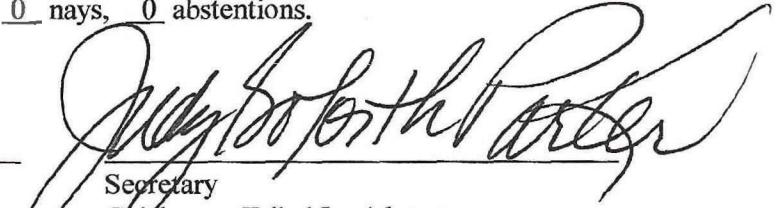
45. the ballot is marked incorrectly;

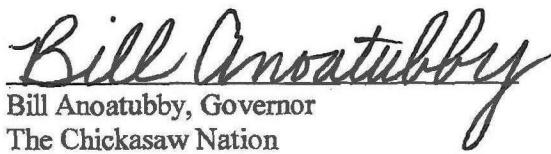
56. the ballot is too soiled or defaced to read; or

67. more than one (1) ~~of each~~ ballot is returned in the official ~~inner~~ envelope.”

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on February 18, 2005 by a vote of 12 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: FEB 22 2005

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Explanation: This resolution amends Title 8 of the Chickasaw Nation Code pertaining to the Election Rules and Regulations. The Election Commission and Election Secretary/Tribal Registrar are in agreement with the included changes.

Requested By: Steve Woods, Chairman
Election Rules and Regulations Ad Hoc Committee

Presented By: Steve Woods, Chairman
Election Rules and Regulations Ad Hoc Committee